Mwavuli PROPERTY MANAGEMENT

Mwavuli Holdings Ltd
P.O. Box 170886, Kampala, Uganda

Schedule to the landlord agreement

The full terms

This schedule goes with the landlord agreement between Mwavuli Holdings Ltd and the landlord named below. It says the same things as the agreement, in numbered paragraphs with the words defined.

Landlord _____

Agreement dated _____

THE FULL TERMS

S1 Words used

1.1 "We", "us", "our" and "Mwavuli" mean Mwavuli Holdings Ltd. "You" and "your" mean the landlord named in the agreement. If there is more than one owner, "you" means all of them together.

1.2 "The building" is the building named in the agreement. A "unit" is a room, flat, shop or office in it that is listed in Annex 1 of the agreement.

1.3 A unit is "occupied" when a tenant is living in it under our tenancy form, with the rent and deposit written down.

1.4 "Rent" is the monthly rent a tenant owes for a unit. It does not include a deposit, money for electricity, water or garbage, VAT, a late fee, costs we pass through, or our coordination fee.

1.5 "Our fee" is 15% of the rent. "Net rent" is the rent minus our fee.

1.6 The "payout date" is the 1st of each month.

1.7 The "due date" of a tenancy is the day of the month on which the tenant's rent is due, as written in the tenancy form. We may move it during the tenancy, as set out in S3.

1.8 The "covered month" of a unit is a month whose rent the tenant has not paid by its due date, after we have paid you the net rent for that month on the payout date, as set out in S3.

1.9 "Arrears" is rent that a tenant owes and has not paid.

1.10 A "quote" is the price for a job, shown to you in writing, with our coordination fee on it.

1.11 "YES" is your reply by SMS or WhatsApp, or on a recorded call that we confirm by text.

1.12 The "end date" is the day the agreement ends.

1.13 A "rent month" of a tenancy runs from one due date to the next.

1.14 The "move-out visit" is our visit to a unit when a tenancy ends, or when we learn that the tenant has gone.

S2 How we pay you

2.1 On each payout date we pay you the net rent of every occupied unit, whether or not the tenant has paid yet, in one payment with one statement.

2.2 We take off that payment the costs you have approved, and we list them on the statement.

2.3 A job never takes more than one payout. For a bigger job, you pay the balance before work starts.

2.4 We charge our fee on rent only. We do not charge it on deposits, on money for utilities or garbage, or on repair costs.

2.5 We charge no sign-up fee, no letting fee and no yearly fee, and we charge none to tenants. Late fees written in the tenancy form go to us.

2.6 We pay you at the account or mobile money number in Annex 4 of the agreement.

2.7 When moving in, a new tenant pays for the days from move-in to the first due date. Every month counts as 30 days, so each day is one-thirtieth of the monthly rent, and the amount for the days is rounded to the nearest UGX 1,000, a half rounding up. We charge our fee on it as on any rent, and we pay you the rest on the first payout date after move-in.

2.8 Each payout pays the rent month that starts that month. We do not pay a rent month that starts after a tenancy has ended.

S3 Due dates and the covered month

3.1 If a tenant has not paid a month’s rent by its due date, that month is the covered month of that unit. We have already paid you the net rent for it on the payout date.

3.2 A unit has one covered month at a time. If the covered month is still unpaid on the next payout date, we do not pay you for that unit until the arrears are cleared or a new tenant moves in. When the arrears are cleared, the unit can have a new covered month.

3.3 When we pay a covered month, the claim for that rent passes to us, and we may collect it from the tenant.

3.4 We earn our fee on a covered month only when that rent is collected.

3.5 When a tenant pays what is owed, the oldest month is paid first. The covered month is repaid to us first. Later months are paid to you, minus our fee.

3.6 To keep our field work well organized, we may move a tenant’s due date during the tenancy. We give the tenant 30 days’ notice and update the tenancy form. The tenant pays a share of the monthly rent for the days counted forward from the old due date to the new one (pro rata), counting every month as 30 days and rounding as 2.7 says. The payout date stays the same.

3.7 A tenant on our tenancy form leaves by giving us 30 days' notice. The tenancy ends on the day before a due date, at least 30 days after we get the notice, so the last rent month is always whole. A tenant who leaves without the notice owes the rent until it would have ended, and we take it from the tenant's deposit first, if we hold it.

S4 When a tenant has not paid

4.1 From the day a tenant misses its due date, we remind, call and visit the tenant, and then send a written notice.

4.2 Should the matter need to go to court, the case is brought in your name, and only with your YES.

4.3 We never lock a tenant out and never remove a tenant's belongings.

4.4 Our own time costs you nothing extra. A lawyer, the court and a bailiff are paid at cost. They are paid from the tenant's deposit first, if we hold it. Where you hold the deposit, or it is not enough, you pay them.

S5 Money we hold for others

5.1 A new tenant's deposit is paid to us and kept in a separate account. We use it only for what the tenancy allows (unpaid rent, damage, legal costs), and the rest goes back to the tenant.

5.2 For a tenant who was in the building before you signed up, you keep the deposit you hold. We write the amount in Annex 3 of the agreement, and you stay responsible for giving it back.

5.3 Rent paid ahead is held in a separate account, like deposits. We pay it out month by month on the payout date, minus our fee, as 2.8 says. When a tenant leaves, the rent held for rent months that start after the tenancy ends goes back to the tenant, with no fee on it, within 14 days of the move-out visit. We first take what the tenant still owes from the deposit, if we hold it, and then from this rent. A rent month that has started is not refunded.

S6 Repairs, utilities and garbage

6.1 We arrange the work as your agent, and the contractor does it.

6.2 You pay the contractor's price plus our coordination fee of 10%. The fee is shown on the quote.

6.3 We wait for your YES before work starts on any job above UGX 200,000 on the quote.

6.4 We may start an urgent safety repair up to UGX 500,000 without your YES. We tell you the same day.

6.5 A tenant pays for damage the tenant causes, in full, once the repairs are done. If the tenant does not, it is taken from the tenant's deposit.

6.6 Electricity, water and garbage bills are paid at cost, with no markup.

S7 Taking on the building

7.1 Before we start, you show us proof of ownership as listed in Annex 2 of the agreement. We check it, and where there is a title we search it.

7.2 We do not take a building that is in dispute, or that has co-owners who have not all agreed in writing.

7.3 We walk the building with you and take photos. Unsafe items must be fixed within 30 days, before we start.

7.4 We may decline a building or unit that we cannot fund, that fails the ownership check or the inspection, or that stays unsafe. Once we accept the building, the promise in the agreement applies.

7.5 Each tenant already in the building moves onto our tenancy form after a visit. Rent a tenant owes from before you sign up is not covered. We collect it for the same fee.

S8 Your duties

8.1 You tell tenants to pay only us, and you pass on any rent paid to you the same day.

8.2 You make no side deals with tenants on rent or on who lives in a unit.

8.3 You do not lock a tenant out, and you do not cut a tenant's water or power.

8.4 You let us in with notice.

8.5 Your taxes and rates stay yours.

8.6 You tell us the truth about ownership, debts and disputes.

S9 Ending the agreement

9.1 Either of us can end the agreement with 30 days' written notice.

9.2 If we have not paid you by the end of the 3rd of a month, you can end the agreement at once, with no fee. We have not paid you when the money has not reached your account or mobile money number in Annex 4 of the agreement.

9.3 We can end the agreement at once if you collect rent from tenants yourself, interfere with tenants, or refuse a repair that is urgent for safety.

9.4 Within 14 days of the end date we send you a final statement and pay you. The payment is the rent we collected and have not paid out, plus prepaid rent for rent months that start after the end date, in full and with no fee, except rent that goes back to a tenant whose tenancy has ended, less costs you approved, and less any covered month a tenant still owes us.

9.5 Tenant files go to you. A deposit we hold goes to you after any rent the tenant still owes is taken from it. We tell the tenants.

9.6 We give each tenant with prepaid rent a note saying the date their rent is paid up to, and you honor it.

S10 VAT, privacy and disagreements

10.1 VAT a tenant pays on rent is not part of the rent for our fee. We pass it to you in the same payment and show it on the statement. Filing it is your job.

10.2 Landlord and tenant details are used only to manage the building. We do not sell them or share them otherwise.

10.3 If we disagree, we talk first. If that does not settle it, we use a mediator we both accept. Only then do we go to the courts of Uganda.

S11 Languages and signing

11.1 The agreement comes in English and Luganda. You choose one, and you and we sign that version.

11.2 An officer of ours sits down with you, explains the agreement in your language and answers your questions.

11.3 You sign, or give your thumbprint, in front of a witness you choose.

11.4 You keep a copy.

S12 The building and the units

12.1 We manage homes and business premises in Kampala and its surroundings. There is no minimum number of units.

12.2 Every unit we take on has the same terms, whatever its rent. A shop or an office gets the same terms as a room.

12.3 The figures are in clause 20 of the agreement.